

24SMCV02953 24SMCV02953

County: los-angeles

Division: Civil Law and Motion

Department: 207

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

3, 2026

CASE NUMBER

24SMCV02953

MOTION

Motion

for Attorneys' Fees

MOVING PARTIES

Plaintiffs Joe Papoyan and Level Car

Connection, LLC

OPPOSING PARTY

Defendant

McLaren Automotive

MOTION

This case arises from allegations that Defendant leased a defective motor vehicle to Plaintiffs and failed to repair or replace it, in violation of the Magnuson-Moss and Song-Beverly Acts.

On June 20, 2024, Plaintiffs Joe Papoyan and Level Car Connection, LLC (“Plaintiffs”) filed suit against Defendant McLaren Automotive, Inc. (“Defendant”) alleging nine causes of action for (1) fraud and deceit; (2) breach of written warranty pursuant to the Magnuson-Moss Warranty Act; (3) breach of implied warranty pursuant to the Magnuson-Moss Warranty Act; (4) breach of written warranty pursuant to the Song-Beverly Consumer Warranty Act; (5) breach of implied warranty pursuant to the Song-Beverly Consumer Warranty Act; (6) violation of Business & Professions Code, § 17200 et seq.; (7) violation of Business & Professions Code, § 17500 et seq.; (8) negligence; and (9) strict liability.

Plaintiffs filed a Notice of Settlement of Entire Case on March 18, 2026, and the Court ordered the dismissal of the entire action on June 3, 2026 subject to the Court retaining jurisdiction under Code of Civil Procedure section 664.6. Thereafter, on July 22, 2026, the Court awarded Plaintiff costs in the amount of \$6,213.29.

Plaintiff now moves for attorneys’ fees in the amount of \$91,673. Defendant opposes the motion and Plaintiff replies.

ANALYSIS

I.

ATTORNEYS’

FEES

Code of Civil Procedure

section 1033.5, which outlines recoverable costs to a prevailing party under Code of Civil Procedure section 1032, permits the recovery of attorneys’ fees when authorized by contract, statute or law.

(Code Civ. Proc., § 1033.5, subd. (a)(10).)

Civil Code section 1794, subdivision (d) provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

Plaintiff seeks to recover its reasonable attorneys' fees and costs incurred pursuant to both Civil Code section 1794, subdivision (d).

McLaren does not contest Plaintiff's entitlement to fees in general. Rather, McLaren argues that the rates and amount of the fees should be reduced.

a.
Hourly
Rates

McLaren argues the hourly rates ranging from \$550 to \$750 are unreasonable for a routine Song-Beverly litigation. In support, McLaren cites to several federal district court cases where the Margarian Firm's fees have been reduced.

For example, McLaren cites to *Kohan v. Lucid Group USA, Inc.* (N.D. Cal. Dec. 18, 2025), No. 3:24-cv-02030-JSC, as an example of the district court reducing the hourly fees sought. In *Kohan*, the District Court refused to accept the rates that had been inflated by \$100 to account for the case being taken on a contingency basis. It did not otherwise lower counsel's ordinary rates that ranged from \$450-600.

McLaren also indicates that *Kohan* cited to *Kumuryan v. Mercedes-Benz USA LLC* (C.D. Cal. Nov. 17, 2024) 2024 WL 5369425, where the District Court found a \$400 hourly rate to be reasonable for the Margarian firm. But *Kumuran* was based upon a rate chart from 2017-2018 and another fee award from 2024.

Further, the Court notes that the risk associated with taking the case on a contingency basis is appropriately analyzed in connection with whether a multiplier is warranted, not to inflate the hourly rate.

As such, the Court finds it appropriate to reduce the attorney rates sought by \$100 across the board, to account for the artificially inflated “contingency” rates. The Court does not reduce the \$150 staff rate.

For the 146 hours billed by counsel, the Court reduces the attorneys’ fees sought by \$14,600.

b.

Hours

Reasonably Incurred

i. Clerical/Administrative Tasks

McLaren challenges 12.05 hours totaling \$7,005 billed by an attorney for clerical, secretarial, and administrative tasks that should have been billed by a lower billing staff member.

But on review, the Court does not find many of these items, which include an attorney review of case documents and drafting of various documents, including the complaint, are clerical in nature.

In total the Court finds only 0.2 totaling \$110 billed to calendaring that was more appropriate for an administrative staff member to handle. Having already reduced these entries by \$20 (by virtue of the rate reduction above), the Court further reduces the request by \$60 to account for the differential between the attorney billing rate and the staff billing rate.

ii. Vague/Ambiguous Entries re Communications

McLaren questions 11.2 hours

billed to communication with Plaintiffs, given the early posture of the case. Although the content of the communications is withheld as attorney-client privileged, the Court does not find unreasonable the time billed for client communications, which constitutes one or two modestly timed updates per month over the course of the nearly two years this case has been pending. Therefore, the Court does not reduce the fees as requested.

iii. Excessive Time on Routine Tasks

McLaren disputes 45.9 hours totaling \$26,781.00 where an excessive amount of time was spent on routine tasks. Upon review, however, the Court does not find the time billed to be excessive, especially in light of the volume of discovery that was considered.

iv. Duplicative, Repetitive, and Unnecessary Work

McLaren contests 9.5 hours constituting \$5,671.50 in fees for work that is duplicative and unnecessary. The Court agrees that the 6.6 hours spent on internal communications between members of the litigation team should not be awarded, but the Court disagrees that the 2.9 hours spent (for which Plaintiffs' counsel billed \$1,835) drafting meet and confer letters and the mediation brief was unnecessary.

After accounting for the \$660 already deducted in connection with the rate reduction above, the Court further reduces the fee award by an additional \$3,176.50.[1]

v. Improper Billing for Vehicle Inspection and Investigative Work

McLaren challenges 1.9 hours billed at \$650 per hour for counsel to do a "preliminary vehicle inspection & test drive." The Court agrees this is not compensable legal work and should not be included among attorneys' fees reasonably incurred. After accounting for the \$190 already deducted via the rate reduction, the Court further reduces the fees requested by an additional \$1,045.

vi. Unnecessary Unsuccessful Default-Related Work

McLaren disputes 0.4 hours billed drafting the request for entry of default against McLaren and reviewing the notice of rejection because the default was ultimately unproductive. However, diligently prosecuting the action includes pursuing entry of default. As such, the Court finds this time was reasonably necessary to the litigation, though it was ultimately unsuccessful.

vii. Duplicative Billing related to Appearance Counsel

McLaren challenges 4.7 hours, totaling \$3,005 for time billed communicating with appearance counsel and purportedly reviewing 223 pages of a transcript that is only 66 pages of testimony. While appearance counsel is a convenience, it is not reasonably necessary to the litigation. As such, the Court does not find this time reasonable.

After accounting for \$470 already deducted vis-à-vis the rate reductions above, the Court further reduces the requested amount by \$2,535.

viii.
Excessive
Billing for Boilerplate Discovery

McLaren contests 4.1 hours totaling \$2,543 billed to “ultimately meaningless discovery [...] that never resulted in any substantive litigation effort.” The Court does not find McLaren has demonstrated that the discovery was not reasonably necessary to the litigation. As such, the Court does not find any reductions warranted for the fees sought.

ix. Excessive and Unnecessary Billing related to Federal Court Proceedings

McLaren questions billings associated with federal court proceedings that ultimately proved short-lived and unnecessary after Plaintiffs dismissed their Magnuson-Moss Warranty Act claims and the case was remanded back to state court.

Again, the Court disagrees

that just because a particular claim or litigation strategy was unsuccessful

that it was necessarily not reasonably necessary to the litigation. As such, the Court does not find reductions warranted to the fees requested.

x. Improper Billing for Preparing Billing
Records and Calculating Fees

McLaren disputes 4.3 hours of

time totaling \$2,942 to prepare the breakdown of expended hours claimed as part of this motion.

The Court finds that this time

was more appropriately billed to a staff member. As such, after accounting for the \$430 already deducted vis-à-vis the rate reduction above, the Court further reduces the fee request by an additional \$1,867.

xi. Excessive Time for Fee Motion

McLaren challenges 14.2 hours

totaling \$10,090 incurred in connection with the instant fee motion. The Court agrees this time is excessive and awards a total of \$3,600 in connection with the fee motion. After accounting for the \$1,420 already reduced in connection with the rate reduction above, the Court further reduces the request by \$5,070.

c.

Multiplier

Plaintiff requests an

additional multiplier to account for the contingent nature of the case, the delayed payment, the skill in litigating, and the favorable result achieved.

McLaren urges that this case

did not present any particular novelty or difficulty, and therefore a multiplier enhancement is not warranted.

The Court agrees with McLaren that no multiplier enhancement is warranted under the circumstances presented here.

CONCLUSION AND ORDER

For

the foregoing reasons, the Court grants in part Plaintiff's motion for attorneys' fees and costs in the amount of \$63,319.50.

Further,

the Court orders Plaintiff to lodge and serve a proposed Order in conformity with the ruling on or before September 11, 2026.

Plaintiff

shall provide notice of the Court's ruling/Order, and file the notice with a proof of service forthwith.

DATED: September 3, 2026 ____/s/____

Michael

E. Whitaker

Judge

of the Superior Court

[1] \$5671.50 challenged – 1,835 in entries reasonably incurred - \$660 already reduced = \$3,176.50.